

*Present:*

*Mr. Justice A.K.M. Asaduzzaman*

*Civil Revision No. 3283 of 2015*

*With Civil Revision No. 542 of 2016.*

*Md. Delwar Hossain and others*

*.....Petitioners.*

*Versus-*

*Government of Bangladesh.*

*.....Opposite parties.*

*Mr.M.A. Sobhan, Advocate. with*

*Mr. Mesbahul Islam Asif, Advocate.*

*-----For the petitioners.*

*Mrs. Shovana Banu, A.A.G*

*-----For the opposite parties.*

*Heard and Judgment on 03<sup>rd</sup> May, 2023.*

*A.K.M. Asaduzzaman, J.*

These 02(two) rules were arisen out of same judgment dated 16.07.2015 passed by the Additional District Judge, Munshigonj in Title Appeal No. 97 of 2005 affirming those dated 03.07.2005 passed by the Senior Assistant Judge, Tungibari, Munshigonj in Title Suit No. 65 of 2004 dismissing the suit should not be set aside and as such heard together and disposed of by this single judgment.

Petitioner as plaintiff filed above suit for declaration of title and for correction of the record of rights.

Plaint case in short inter alia is that the suit land as described detailed in the schedule of the plaint being plot no. 2062/3620 of C.S. Khatian No. 196 measuring as area of 3.00 acres originally belonged to Habibullah alias Hafizullah. He sold out 90 decimals of plot No. 2062/3620 and 90 decimals of alluvion land adjacent to western side of that land to Abdul Latif on 10.08.1949 by deed No. 5972. Habibullah again sold out 30 decimals of land of plot No. 2062/3620 and 30 decimals of alluvion land adjacent to that plot to Abdul Latif on 10.08.1949 by deed No. 5974. Abdul Latif orally sold out 30 decimals of land to A. Qader Zamaddar with a consideration of Tk. 90/- on 25<sup>th</sup> day of Kartik 1360 B.S. Thereafter that 30 decimals of land stands at 3.05 acres by way of alluvion. S.A. khatian No. 1630 was prepared in the name of said Abdul Qader Zamadder in respect of 3.05 acres of land in plot Nos. 2086 and 2087. Abdul Qader sold out 30 decimals of land to plaintiffs father on 18.04.1974 A.D. Thereafter that land increases to 62 decimals by way of alluvion. Abdul Kader died leaving behind 02 sons and 01 daughter, present plaintiffs. Thus plaintiffs got 3.97 acres of land by way of purchase on alluvion. Plaintiffs paid rent in respect of the suit

land. The plaintiffs have been possessing the suit land by cultivating various crops therein. On 16.08.200 A.D. plaintiff No. 3 went to office of the Assistant Commissioner Land to mutate the suit land in their name. But they denied to mutate that suit land in their (plaintiffs) name and claimed suit land as government khash land. Thereafter the plaintiffs confirmed about the wrong R.S. khatian after procuring the certified copy of the suit land, cause of action of the suit occurred on 16.08.2000 when the defendants denied to mutate the suit land in plaintiffs name. Hence the suit.

Defendant opposite party no. 2 contested the suit by filing written statement denying the plaint case, alleging, inter alia, that suit land is the khash land. R.S. khatian No. 1 was rightly prepared in the name of the government. Abdul Qader was never been the owner of the suit land. The story of oral transfer asserted by the plaintiff is false. Plaintiffs all deeds are forged and fictitious. The suit is false and liable to be dismissed with cost.

By the judgment and decree dated 03.07.2005 trial court dismissed the suit on contest.

Challenging the said decree, plaintiff preferred Title Appeal No. 97 of 2005 before the court of District Judge, Munshigonj, which was heard on transfer by the Additional District Judge, Munshigonj, who by the impugned judgment and decree dated

16.07.2015 dismissed the appeal and affirmed the judgment of the trial court.

Challenging the said judgment and decree all the plaintiffs making themselves in 02 divisions preferred to revision and obtained the instant 02 (two) rules.

Mr. M.A. Sobhan along with Mr. Md. Mesbahul Islam Asif, the learned advocate appearing for the petitioners drawing my attention to the lower court's record submit that in order to prove the title of the plaintiff, plaintiff has adduced as many as 05 P.W.s. and submitted a number of exhibited documents and successfully able to prove the title and possession over the suit land. On the contrary defendants could not show the basis of recording of the R.S. khatian in the name of the government as khash land but the court below upon misguided themselves on wrong presumptions of fact disbelieved the plaintiff's case and dismissed the suit thereby committed error of law resulting in an error in decision occasioning failure of justice. The impugned judgment is thus not sustainable in law, which is liable to be set aside and the rule may be made absolute.

On the other hand Mrs. Shovana Banu, the learned Assistant Attorney General appearing for the opposite parties submits that since the property is a government khash land, the

court below has rightly held the same and dismissed the suit rightly. Since the judgment of the court below contains no illegality, she finally prays for discharging the rule.

Heard the learned advocate of both the sides and perused the impugned judgment and the lower court's record.

This is a suit for declaration of title and also plaintiffs claimed that recording of the R.S khatian in the name of the Government is wrong. Plaintiffs further claimed that suit property was belong to C.S. recorded tenant Habibullah alias Hafizulla. He sold the suit land to Abdul Latif by way of 02 registered sale deed nos. 5972 and 5974 dated 10.08.1949. Thereafter Abdul Latif sold the suit land orally to Abdul Qader Zamadder, whose name subsequently been recorded rightly in S.A. khatian No. 1630. Thereafter Abdul Qader sold 30 decimals of land to plaintiff's father on 18.04.1974. After the death of Abdul Qader the present plaintiffs inherited the property. This property purchased by the plaintiffs also been increased by way of alluvion and stands at 3.97 acres of land. Plaintiffs now possessing the said land by cultivating the various crops. When the government official disclosed the property has been recorded the name of the government, plaintiff's title became clouded and they filed this suit. On the other hand government claimed that property is a

government khash land and R.S. khatian was rightly been recorded in the name of the government. Abdul Qader never owned and possessed the suit land. All the plaintiff's story, documents are forged and concocted. In order to prove the plaintiff's case, plaintiff has adduced as many as 05 P.W.s and exhibited some documents including the rent receipts and registered documents of his predecessor. All these documents are marked exhibited as exhibit no. 1-10. Exhibit No. 1 is the C.S. khatian No. 196, which shows that Hafizullah was shown therein as possessor tenants. Exhibit-2 is a certified copy of S.A. khatian No. 1630, which was recorded in the name of Abdul Qader Zamadder. Exhibit-5 is a notice, served upon Abdul Qader Zamadder of a certificate case being no. 102/8, 69-70 issued for rent. Exhibit-6 series are the documents of paying rents to the government by Abdul Qader Zamader. Exhibit-7 is the declaration notice for sale the property for non payment of the rent in misc. case No. 857/84-85 issued upon the heirs of Abdul Qader Zamader on 11.04.1987. Exhibit -8 is the sale deed being no. 2660 dated 18.04.1974 of transferring the suit property by Abdul Latif Munshi to Abdul Qader Zamader. Exhibit Nos. 9 and 10 are the two registered sale deed being no. 5972 and 5974 both dated 10.08.1949 of selling the property to Abdul Latif by Habibullah. By this way plaintiffs tried to establish their chronology of their

title. Exhibit nos. 9 and 10 are the two ancient documents through which plaintiffs predecessor obtained the suit property from the C.S. recorded tenant Hafizullah. These 02 documents also been proved by calling the volumes through P.W.s. Abdul Latif after getting the property from C.S. recorded tenant Hafizullah, who transferred it to Abdul Qader 30 decimals of land through registered sale deed dated 18.04.1974 (exhibit -8) as well as by way of transferring the same orally. Accordingly the name of the Abdul Qader correctly been recorded in the S.A. khatian. After getting the property, Abdul Qader paid the rent to the government in different year, which has been proved through Exhibit-6 series. Sometime when he failed to pay rents certificate case was started against him but finally it was settled on receiving the rent, Exhibit-7 is the prove of all these things. P.W.2 Abdur Rob, P.W.3 Kubbat Ali, P.W.4 Darvesh Ali all these are the witnesses of possession of the plaintiffs, who in a voice supported the plaintiff's case as asserted by the P.W.1 Delowar Hossain. By this way plaintiffs has successfully able to prove their title and possession over the suit land.

In support of recording of the R.S. khatian in the name of the government as a khash land one Kutub Uddin Ahmed, who is

the Assistant Officer of Gazaria Upazila Bhumi Office deposed in court and made out a 3<sup>rd</sup> Case saying that-

‘নদীগর্ভে বিলীন হওয়ায় সরকারী খাস হয়েছে। নতুন রেকর্ডে খাস হয়েছে। বাদীর কোন দখল নাই। সরকারের খাস দখলে আছে। R.S. খতিয়ান এর ফটোকপি ২ পাতা ও দিয়ারার খতিয়ান এর ২ পাতা সত্যায়িত খতিয়ান দাখিল করলাম। প্রদর্শনী/ A, B.’

Upon perusal of that 02 khatians as Exhibit A and B it will appear that no where it has been recorded as a alluviated land rather it was recorded therein as null land. So defendants contention that it was a alluviated land of the government and recorded government khash land not been proved by any documents.

Upon perusal of the defendants witnesses as well as documents cited, it is very difficult to find the recording of the R.S. khatian as government khash land having any basis. When the plaintiffs has able to prove his title and possession over the suit land and the plaintiffs documents are all ancient documents, which are no way to found and opposed by the government to be forged and fraudulent one and the recording of R.S. khatian is a government khash land contains no basis, I am of the view that plaintiff is entitle to get the decree as prayed for. The courts below totally failed to consider all above aspect of the case and without at all discussing the evidence of the parties in this case, dismissed

the suit on mere presumption. Accordingly the judgment of the court below are liable to be set aside.

In that view of the matter, I find merit in these rules.

Accordingly both the rules are made absolute and the judgment and decree passed by the court below are hereby set aside and suit is decreed in favour of the plaintiffs.

Let the order of status-quo granted earlier by this court is hereby recalled and vacated.

Send down the L.C. Records and communicate the judgment to the court below at once.